

The U.P. Information and Public Relations Department (Headquarter) Group 'D' Service Rules, 1994

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State of Uttar Pradesh - Act

The U.P. Information and Public Relations Department (Headquarter) Group 'D' Service Rules, 1994

UTTAR PRADESH

India

The U.P. Information and Public Relations Department (Headquarter) Group 'D' Service Rules, 1994

Rule

THE-U-P-INFORMATION-AND-PUBLIC-RELATIONS-DEPARTMENT-HEADQUARTER-GROUP-D-SERVICE-RULES-1994 of 1994

Published on 21 March 1994

Commenced on 21 March 1994

[This is the version of this document from 21 March 1994.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Information and Public Relations Department (Headquarter) Group 'D' Service Rules, 1994

Published vide Notification No. 439/19-1-94-163-91, dated 21st March, 1994

In exercise of the powers conferred by the proviso to Article 309 of the Constitution and in supersession of all existing rules and orders on the subject, the Governor is pleased to make the following rules regulating recruitment and the conditions of service and persons appointed in the Uttar Pradesh Information and Public Relations Department (Headquarter) Group 'D' Service :

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Information and Public Relations Department (Headquarter) Group 'D' Service Rules, 1994.

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Information and Public Relations Department (Headquarter) Group 'D' Service comprises Group 'D' posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,

(a)

"Appointing authority" means the Director;

(b)

"Citizen of India" means a person who is or is deemed to be a citizen of India under part II of the Constitution;

(c)

"Constitution " means the Constitution of India;

(d)

"Director" means the Director of Information and Public Relations, Uttar Pradesh;

(e)

"Government" means the State Government of Uttar Pradesh;

(f)

"Governor" means the Governor of Uttar Pradesh;

(g)

"Member of the Service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the Service;

(h)

"Service" means the Uttar Pradesh Information and Public Relations Department (Headquarters) Group 'D' Service;

(i)

"Substantive appointment" means an appointment not being an ad hoc appointment, on a post in the cadre of the Service, made after selection in accordance with the rules and, if there are no rules, in accordance with the procedure prescribed for the time being by executive instructions, issued by the Government;

(j)

"Year of recruitment" means period of twelve months commencing from the first day of July of a calendar year.

Part II ? Cadre

4.

Cadre of service.

- (i) The strength of the Service and of each category of posts therein shall be such as may be determined by the Government from time to time.

(ii)

The strength of the Service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (i), be as given in the Appendix :

Provided that-

(i)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post, without thereby entitling any person to compensation; or

(ii)

the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the Service shall be made from the following sources :

(1)

Electrician

By promotion through the Departmental Selection

Committee from amongst substantively appointed Cinema Operators, Projector Operators, and Operator-cwm-Electricians who have completed three years, service, as such, on the first day of the year of recruitment.

(2)

Carpenter (Rs. 950-1,500)

By promotion through the Departmental Selection

Committee from amongst substantively appointed Carpenter-cwm-Painters who have completed three years, service, as such, on the first day of the year of recruitment.

(3)

Cinema Operator/Projector

Operator/Operator-cum-Electrician

By promotion through the Departmental Selection

Committee from amongst substantively appointed employees in the scale of pay of Rs. 775-1,025 who have passed junior High School Examination of the Basic Shiksha Parishad, Uttar Pradesh, or an Examination recognised by the Government as equivalent thereto, possess Cinema Operators Licence and have completed three years' substantive service on their respective posts, on the first day of the year of recruitment. If no suitable candidates are available for promotion, the post may be filled by direct recruitment.

(4)

Carpenter-cum-Painter

(5)

Printing Machine Operator/ Embossing Machine

Operator/ Railway Parcel Assistant

By promotion through the Departmental Selection

Committee from amongst substantively appointed Carpenters (Rs. 775-1/125) and Workshop Assistants who have completed three years, service, as such, on the first day of the year of recruitment.

(6)

Addressographer Machine Operator/Cyclostyle

Machine Operator/ Daftary/ Daftary-cum-Packer

By promotion through the Departmental Selection

Committee from amongst substantively appointed employees in the scale of pay of Rs. 775-1,025 who have passed High School Examination of the Board of High School and Intermediate Education, Uttar Pradesh, or an Examination recognised by the Government as equivalent thereto, and have completed three years' substantive service on their respective posts on the first day of the year of recruitment.

(7)

Carpenter (Rs. 775-1025)

By promotion through the Departmental Selection

Committee from amongst substantively appointed Peons, Farrashes, and Packers who have completed three years substantive service on their respective posts on the first day of the year of recruitment. By direct recruitment.

(8)

Jamadar

By promotion through the Departmental Selection

Committee from amongst substantively appointed peons who have completed three years' service, as such, on the first day of the year of recruitment.

(9)

Workshop Assistant

By promotion through the Departmental Selection

Committee from amongst substantively appointed employees in the scale of pay of Rs. 750-940 who have completed three years, service, as such, on their respective posts on the first day of the year of recruitment.

(10)

Peon/Farrash/Machine Man/ Chaukidar/Mali/

Waterman/ Cleaner/Beldar/Liftman/Packer/ Attendant/Madadgar/Lab.

Attendant/Battery Bearer/ Sweeper /Sweeper-cum-Farrash

By direct recruitment.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of the Government in force at the time of the recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the Service must be-

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before 1st January, 1962 with the intention of permanently settling in India; or

(c)

a person of India origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India :

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour the certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging category (c) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belonging to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year shall be subject to his acquiring Indian citizenship.

Note.-A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualifications.

- A candidate for direct recruitment to the various posts in the Service must possess the following qualifications :

Posts

Qualifications

1

2

(a)

Cinema Operator/Projector Operator

1.

Must have passed Junior High School Examination of the Basic Shiksha Parishad, Uttar Pradesh or an Examination recognised by the Government as equivalent thereto.

2.

Knowledge to operate the Cinema Machine.

3.

Licence of Cinema Machine, Operator.

(b)

Operator-cum-Electrician

1.

Must have passed Junior High School Examination of the Basic Shiksha Parishad, Uttar Pradesh or an Examination recognised by the Government as equivalent thereto.

2.

Knowledge to operate the Cinema Machine.

3.

Licence of Cinema Machine Operator.

4.

Knowledge of electric works.

(c)

Carpenter (Rs. 775-1025)

1.

Must have passed Class VIIIth Examination from a Government recognised institution.

2.

Three years experience of carpentry.

(d)

Peon/Packer

Must have passed at least Class V Examination from a Government recognised institution

(e)

Farrash/Machine Man/ Chaukidar/ Mali /Waterman/Cleaner /Beldar / Lift man/ Attendant/Madadgar/ Lab. Attendant/ Battery Bearer/ Sweeper/ Sweeper-cum-Farrash

1.

No educational qualifications are prescribed for these posts but preference will be given to a person who is educated or is at least able to read and write Hindi in Devnagri Script.

2.

No person shall be eligible for appointment to

post of Mali unless he is found to possess requisite knowledge pertaining to the work of a Mali and has good experience of that work.

3.

No person shall be eligible for appointment to a post requiring technical knowledge unless he is found to possess the requisite technical knowledge and has good experience pertaining to the particular job.

9.

Preferential qualification.

- A Candidate who has served in the Territorial Army for a minimum period of two years; shall other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of 18 years and must not have attained the age of more than 32 years on the first day of July of the calendar year in which vacancies are notified :

Provided that the upper age limit in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes and such other categories as may be notified by the Government from time to time shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the Service must be such as to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note.-Persons dismissed by the Union Government or a State Government or by a Local Authority or a Corporation or Body owned or controlled by the Union Government or a State Government shall be ineligible for appointment to any post in the service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living shall not be eligible for appointment:

Provided that the Government may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the Service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for a appointment, he shall be required to produce a Medical Certificate of fitness in accordance with the rules framed under Fundamental Rule 10, contained in Chapter III of the Financial Hand-Book, Volume II, Part III:

Provided that a Medical Certificate of fitness shall not be required from a candidate recruited by promotion.

Part V ? Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine the number of vacancies to be filled during the course of the year of recruitment as also the number of vacancies to be reserved for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories under Rule 6. The vacancies for direct recruitment shall be notified to the Employment Exchange in accordance with the rules and orders for the time being in force.

15.

Procedure for direct recruitment.

(1)

For the purpose of recruitment there shall be constituted a Selection Committee as follows:

(i)

Appointing Authority.

(ii)

An officer belonging to Scheduled Castes/Scheduled Tribes, nominated by the District Magistrate, if the appointing authority does not belong to Scheduled Castes/Scheduled Tribes. If the appointing authority belongs to Scheduled Castes/Scheduled Tribes an officer other than belonging to Scheduled Castes/ Scheduled Tribe nominated by the District Magistrate;

(iii)

Two officers nominated by the appointing authority, one of whom shall be an officer belonging to minority community and the other belonging to Backward Class. If such suitable officers are not available in his department or organisation, such officers shall, on the request of the appointing authority, be nominated by the District Magistrate and on his failure to do so by reason of nonavailability of suitable officers such officers shall be nominated by the Divisional Commissioner.

(2)

When the names both of the General Candidates and Reserved Candidates (for whom vacancies required to be reserved under Rule 6) have been received by the Selection Committee it shall interview and select the candidates.

(3)

In making selection the Selection Committee shall give weightage to the retrenched employees awarding marks in the following manner :

(i)

For the first complete year

...

15 Marks

(ii)

For the next and every completed year of service

...

15 Marks

Provided that the maximum marks awarded to a retrenched employee under this sub-rule shall not exceed 15 marks.

(4)

The Selection Committee shall prepare a list of candidates in order of merit as disclosed by the marks obtained in the interview. If two or more candidates obtained equal marks, the Selection Committee shall arrange their names in order of merit on the basis of their general suitability for the post. The number of the names in the list shall be larger (but not larger by more than twenty-five per cent) than the number of the vacancies.

16.

Procedure for recruitment by promotion to the posts of Addressographer Machine Operator, Cyclostyle Machine Operator, Daftari, Daftari-cwm-Packer and Workshop Assistant.

(1)

Recruitment by promotion to the posts of Addressographer Machine Operator, Cyclostyle Machine Operator, Daftari, Daftari-cwm-Packer and Workshop Assistant shall be made on the basis of merit through the Selection Committee comprising :

(i)

Appointing Authority

...Chairman

(ii)

Two officers nominated by the appointing authority

... Member.

(2)

Applications shall be invited from the eligible candidates by the appointing authority. After the scrutiny of the applications, the eligible candidates shall be subjected to a test by the Selection Committee to assess the suitability of the candidates for appointment to each post. The Committee may also interview the candidates if it considers necessary.

(3)

The Selection Committee shall prepare separate lists of candidates selected for each category of posts, arranged in order of seniority, and forward the same to the appointing authority.

17.

Procedure for recruitment by promotion to the posts not covered by Rule 16.

(1)

Recruitment by promotion to the posts not covered by Rule 16 shall be made on the basis of seniority subject to rejections of the unfit through the Selection Committee constituted under sub-rule (1) of Rule 16.

(2)

The appointing authority shall prepare ineligibility lists of the candidates in accordance with the Uttar Pradesh Promotion by Selection (on Posts Outside the Purview of the Public Service Commission) Eligibility List Rules, 1986, and place the same before the Selection Committee along with their character rolls and such other record pertaining to them, as may be considered proper:

Provided that where promotion to any category of posts is to be made from more than one feeder cadres, eligibility list shall be prepared by arranging the names of the persons in the field of eligibility in order of seniority as determined by the dates of their substantive appointment on their respective posts and where two or more persons were appointed as such on the same date, the persons older in age shall be placed higher in the list. In so arranging the names, the inter se seniority of persons holding the same post shall not be disturbed.

(3)

The Selection Committee shall consider the cases of candidates on the basis of the records referred to in sub-rule (2), and, if it consider necessary, it may interview the candidates also.

(4)

The Selection Committee shall prepare a list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

Part VI ? Appointment, Probation, Confirmation and Seniority

18.

Appointment.

(1)

The appointing authority shall make appointment by taking the names of the candidates in the order in which they stand in the lists prepared under Rule 15 or Rule 16 or Rule 17, as the case may be.

(2)

If more than one order of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as determined in the selection or, as the case may be, as it stood in the cadre from which they are promoted.

19.

Probation.

(1)

A person on substantive appointment to a post in the Service shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date up to which the extension is granted :

Provided that, save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstance beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of probation that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service rendered in an officiating or temporary capacity in a post included in the cadre or any other equivalent or higher post to be taken into account for the purpose of computing the period of probation.

20.

Confirmation.

(1)

Subject to the provisions of sub-rule (2) a probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation, if-

(a)

his work and conduct is found to be satisfactory;

(b)

his integrity is certified; and

(c)

the appointing authority is satisfied that he is otherwise fit for confirmation.

(2)

Where, in accordance with the provisions of the Uttar Pradesh State Government Servants Confirmation Rules, 1991, confirmation is not necessary, the order under sub-rule (3) of Rule 5 of these rules declaring that the person concerned has successfully completed the probation shall be deemed to be the order of confirmation.

21.

Seniority.

- The seniority of persons substantively appointed in the Service shall be determined in accordance with the Uttar Pradesh State Government Servants Seniority Rules, 1991, as amended from time to time.

Part VII ? Pay, Etc.

22.

Scales of pay.

(1)

The scales of pay admissible to persons appointed to the various categories of posts in the Service shall be such as may be determined by the Government from time to time.

(2)

The scales of pay in force at the commencement of these rules are given in the Appendix.

23.

Pay during probation.

(1)

Notwithstanding any provision in Fundamental Rules to the contrary, a person on probation, if he is not already in permanent Government service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service and second increment after two years' service when he has completed the probationary period and is also confirmed :

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of person who was already holding a post under the Government, shall be regulated by relevant Fundamental Rules :

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules applicable generally to Government servants serving in connection with the affairs of the State.

24.

Criteria for crossing efficiency bar.

- No person shall be allowed to cross the efficiency bar unless his work and conduct found to be satisfactory and his integrity is certified.

Part VIII ? Other Provisions

25.

Canvassing.

- No recommendations, either written or oral, other than those required under the rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

26.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

27.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to the service causes undue hardship in any particular case, it may, notwithstanding anything contained in the rules applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

28.

Savings.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders of the Government issued from time to time in this regard.

Appendix

[See Rule 4(2) and Rule 22 (2)]

Serial No.

Name of the post

No. of posts

Scales of pay

Permanent

Temporary

Total

1

2

3

4

5

6

1.

Electrician

2

-

2

Rs. 950-20-1150-E.B.-25-1500.

2.

Carpenter

2

-

2

Ditto.

3.

Cinema Operator

5

-

5

825-15-900-E.B.-20-1200.

4.

Projector Operator

1

-

1

Ditto.

5.

Operator-cum-Electrician

5

-

5

Ditto.

6.

Carpenter-cum-Painter

5

-

5

Ditto.

7.

Printing Machine Operator

3

-

3

Ditto.

8.

Embossing Machine Operator

2

-

2

Ditto.

9.

Railway Parcel Assistant

1

-

1

Ditto.

10.

Addressographer Machine Operator

1

-

1

77-12-871-14-955-E.B.-14-1025

11.

Carpenter

3

-

3

Ditto.

12.

Cyclostyle Machine Operator

1

-

1

Ditto.

13.

Jamadar

1

-

1

Ditto.

14.

Daftari

21

-

21

Ditto.

15.

Daftari-cum-Packer

1

-

1

Ditto.

16.

Workshop Assistant

2

-

2

Ditto.

17.

Peon

66

2

68

750-12-870-E.B.-14-940.

18.

Farrash

6

-

6

Ditto.

19.

Machine Man

1

-

1

Ditto.

20.

Chaukidar

16

-

16

Ditto.

21.

Mali

2

-

2

Ditto.

22.

Waterman

1

-

1

Ditto.

23.

Cleaner

9

-

9

Ditto.

24.

Beldar

8

-

8

Ditto.

25.

Liftman

1

-

1

Ditto.

26.

Packer

14

-

14

Ditto.

27.

Attendant

1

-

1

Ditto.

28.

Madadgar

8

-

8

Ditto.

29.

Lab. Attendant

1

-

1

Ditto.

30.

Battery Bearer

1

-

1

Ditto.

31.

Sweeper

4

-

4

Ditto.

32.

Sweeper-cum-Farrash

1

-

1

Ditto.

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